

22STCV28077 22STCV28077

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-11
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Case Number: 22STCV28077 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

FERGUSON ENTERPRISES,
LLC,

Plaintiff,

vs.

GREEN COURT INVESTORS, LP, et al.,

Defendants.

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CASE NO.: 22STCV28077

[TENTATIVE] ORDER OVERRULING DEMURRER TO
CROSS-COMPLAINT

Dept. 506

8:30 a.m.

August 11, 2026

On

November 9, 2023, the Court consolidated Case No. 22STCV28077 and Case No. 22STLC06776 for all purposes, designated Case No. 22STCV28077 as the lead case, and ordered that subsequent filings should be under the lead case number.

On

October 21, 2025, KLS Financial LLC filed a cross-complaint against Infinity Plumbing, Inc. ("Infinity"), Marco Marquez ("Marquez"), and Maria Carmen Marquez ("MC Marquez").

On

December 5, 2025, Cross-Defendants filed a demurrer.

DISCUSSION

The

Cross-Complaint alleges (1) breach of contract, (2) negligence, (3) fraud, and (4) violation of Business & Professions Code sections 7025-7034, 7114, and 7125.2.

Cross-Defendants

argue that all claims “are barred by the Doctrine of Laches; and, as further noted above, it is well-settled rule that the Doctrine of Laches can be raised by a general demurrer presenting a bar to the pleading leaving the Court without jurisdiction over this or any claim now untimely presented by KLS per CCP §430.10(a).” (Demurrer at pp. 7-8; see id. at pp. 11-13.) The Court will not sustain a demurrer on this ground because the equitable defense of laches requires consideration of facts and prejudice beyond the scope of demurrer.

Cross-Defendants

argue that “the inclusion of claims by the non-party GCI, incorporated into every cause of action, renders this and every cause of action improper and subject to demurrer.” (Demurrer at p. 8; see id. at pp. 10, 14.) GCI is not a party to this Cross-Complaint, but allegations about its ownership of the subject property are relevant. (See Cross-Complaint ¶ 7.)

Cross-Defendants

argue that Marquez and MC Marquez are not parties to the contract and there are no allegations about their own actions. (Demurrer at p. 8; see id. at pp. 9-10, 14.)

However, Cross-Defendants seemingly ignore the allegations that all Cross-Defendants “were, and currently are, the agents, servants, employees, representatives, co-conspirators, principals, affiliate and/or alter egos of one another, and in such capacity or capacities have participated in the conduct alleged in this Cross-Complaint and were, and currently are, acting within the scope and furtherance of each of their respective agencies, servitudes, employment, conspiracies and/or authorities and in such capacity or capacities have participated in the breaches, acts and omissions alleged in this Cross-Complaint or in some manner are responsible indirectly or directly for the injuries and damages suffered by KLS.” (Cross-Complaint ¶ 5.)

Cross-Defendants’

remaining arguments are incoherent and uncertain, and they are overruled for the reasons stated in the Opposition.

CONCLUSION

The

demurrer is OVERRULED. Cross-Defendants are ordered to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court